**IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI**
**COURT-V**

**Item No.-508**
CA(CAA No) No- 90/230/232/ND/2020

**IN THE MATTER OF:**
Digilife Distribution and Marketing Service Ltd
And HCL Infosystems Pvt Ltd (Amendement in CA 161/21) **....Applicant**

**SECTION**
U/s 230-232 **Order delivered on 20.07.2021**

**CORAM:**
**SHRI ABNI RANJAN KUMAR SINHA,**
**HON'BLE MEMBER (JUDICIAL)**

**SHRI K.K. VOHRA,**
**HON'BLE MEMBER (TECHNICAL)**

**PRESENT:**
For the Applicant : Mahesh Agarwal & Rajeev Kumar Adv
For the Respondent : Hemlata Rawat Adv for OL

**ORDER**

In course of hearing, we notice that the petitioner has not filed separate affidavit in respect of pendency of any investigation/inquiry against the petitioner company as required under Section 230 (2) of Companies Act, 2013. Therefore, the petitioner is directed to file separate affidavit and apart from that, petitioner is at liberty to file any other documents related with this matter. Ld. Counsel for the petitioner is also advised to give evidence of 90% consent given by the unsecured creditors wherever dispensation of the meeting of the creditors is prayed for in compliance with Section 230 (9) of the Companies Act 2013, provisional list of Creditors (secured and Unsecured) of 3 companies as on 31.3.2021, the proof of repayment to the unsecured creditors in Transferor Companies 1 and 2 since last audited financials as on 31.3.2020 till 31.3.2021, details of creditors having value of Rs. 2 lakh and less each for the creditors of Transferee Company, any rule/judgement for waiver of notices to creditors of small value etc.

List the matter on **28.07.2021.**

Sd/-
**(K.K. VOHRA)**
**MEMBER (T)**

Sd/-
**(ABNI RANJAN KUMAR SINHA)**
**MEMBER (J)**

Chirag